

Federal Maritime Commission

Docket No. 18-04

Falcone Global Solutions, LLC

v.

Maurice Ward Networks, Ltd. d/b/a Maurice Ward Group:

Maurice Ward & Co., BV,; and Maurice Ward & Co., S.R.O

ANSWER

COMES NOW Maurice Ward Networks, Ltd., Maurice Ward & Co., BV and Maurice Ward & Co., S.R.O., Respondents in the above-referenced matter, and for Answer to the Verified Complaint filed by Falcone Global Solutions, LLC ("Falcone"), says as follows:

Response to Introductory Paragraph

The unnumbered introductory paragraph of the Verified Complaint contains material misstatements of fact, is inaccurate and misleading. First, there was no involvement whatsoever by Maurice Ward & Co., S.R.O. with the referenced transactions. To obfuscate this fact, the Complainant filed a "shotgun" pleading which fails to delineate the acts and/or omissions attributable to the individual Respondents. Next, the actions of Maurice Ward & Co., BV in holding certain documents (right of retention), was in all respects lawful and in accordance with governing contract and law. Further, none of the Respondents issued Bills of Lading as they are not carriers and/or common carriers, and are transportation intermediaries, in a similar position to the Complainant. In further response to the specific allegations of the Complaint, Respondents' say as follows:

Response to the Allegations Concerning Parties

1. Based on information and belief, Respondents admit the allegations contained in Paragraph 1 of the Verified Complaint.

2. Maurice Ward & Co., S.R.O. admits that it is a corporation, or entity in the nature of a corporation, organized and existing under the laws of the Czech Republic with its principal place of business in the Czech Republic. Maurice Ward & Co., S.R.O. admits that it is a foreign-based Ocean Transport Intermediary, registered with the FMC (Ref. No. 022996). Maurice Ward & Co., S.R.O. specifically denies that it had any involvement in the underlying transactions which are the subject of the present Complaint and demands strict proof thereof. Maurice Ward & Co., S.R.O. specifically denies that service upon it was appropriate or that the referenced individual serves as its "Registered Agent," as alleged herein. Except as specifically admitted herein, Respondents deny the allegations contained in in Paragraph 2 of the Verified Complaint.

3. Maurice Ward Networks, Ltd. admits that it is a corporation, or entity in the nature of a corporation, organized and existing under the laws of the United Kingdom with its principal place of business in the United Kingdom. Maurice Ward Networks, Ltd. specifically denies that service upon it was appropriate or that the referenced individual serves as its "Registered Agent," as alleged herein. Except as specifically admitted herein, Respondents deny the allegations contained in in Paragraph 3 of the Verified Complaint.

4. Maurice Ward & Co., BV admits that it is a corporation, or entity in the nature of a corporation, organized and existing under the laws of the Netherlands with its principal place of business in the Netherlands. Maurice Ward & Co., BV specifically denies that service upon it was appropriate or that the referenced individual serves as its "Registered Agent," as alleged herein.

Except as specifically admitted herein, Respondents deny the allegations contained in in Paragraph 4 of the Verified Complaint.

Response to the Allegations Concerning Jurisdiction

5. Respondents deny the allegations contained in Paragraph 5 of the Verified Complaint.

Response to the Statement of Facts

6. Respondents admit that Maurice Ward Networks, Ltd., Maurice Ward & Co., BV and Maurice Ward & Co., S.R.O. are independent corporations, operating to provide freight forwarding, logistics and custom clearance services for customers. Respondents admit that Maurice Ward & Co., BV acted in concert with Falcone for multiple transactions involving shipment of freight on behalf of FORBO Flooring. Except as specifically admitted herein, the Respondents deny the allegations contained in Paragraph 6 of the Verified Complaint.

7. Respondents deny the allegations contained in Paragraph 7 of the Verified Complaint.

8. Respondents deny the allegations contained in Paragraph 8 of the Verified Complaint.

9. Respondents admit that part of the booking process for the FORBO Flooring freight involve use of Falcone's "FalcTrak" online portal. Except as specifically admitted herein, the Respondents deny the allegations contained in Paragraph 9 of the Verified Complaint.

10. Respondents admit that part of the booking process for the FORBO Flooring freight involve use of Falcone's "FalcTrak" online portal. Except as specifically admitted herein, the Respondents deny the allegations contained in Paragraph 10 of the Verified Complaint.

11. Respondents deny the allegations contained in Paragraph 11 of the Verified Complaint, and specifically deny that they issued Bills of Lading in connection with the referenced shipment of goods.

12. Respondents admit that Bills of Lading generally nominate a "consignee." To the extent further response is required from Respondents, they deny the allegations contained in Paragraph 12 of the Verified Complaint.

13. Because of the abstract nature of this averment, the Respondents are without sufficient information with which to admit or deny the allegations contained in Paragraph 13 of the Verified Complaint, and therefore deny the same.

14. Because of the abstract nature of this averment, the Respondents are without sufficient information with which to admit or deny the allegations contained in Paragraph 14 of the Verified Complaint, and therefore deny the same.

15. The Respondents deny the allegations contained in Paragraph 15 of the Verified Complaint and all subparts therein. The Respondents specifically deny that they issued Bills of Lading as referenced in Exhibit 3 to the Verified Complaint, and would point out that said Bills appear to be issued by the various and sundry carriers actually involved with the shipment of goods (e.g., NYK Line, Maersk Line, etc.).

16. Respondents admit Maurice Ward & Co., BV and/or Maurice Ward Networks, Ltd would issue invoices to Falcone for services rendered, and that some – but certainly not all – of the invoices were paid. Except as specifically admitted herein, the Respondents deny the allegations contained in Paragraph 16 of the Verified Complaint.

17. Respondents admit Maurice Ward & Co., BV and/or Maurice Ward Networks, Ltd would issue invoices to Falcone for services rendered, and that some – but certainly not all – of the invoices were paid. Except as specifically admitted herein, the Respondents deny the allegations contained in Paragraph 17 of the Verified Complaint.

18. Respondents deny the allegations contained in Paragraph 18 of the Verified Complaint.

19. Respondents deny the allegations contained in Paragraph 19 of the Verified Complaint.

20. Respondents admit that, during the referenced timeframe, Maurice Ward & Co., BV and Falcone were engaged in efforts to transport certain cargo for their mutual customer, FORBO Flooring. Answering further, Respondents admit that appropriate documentation was issued for said undertakings. Except as specifically admitted herein, the Respondents deny the allegations contained in Paragraph 20 of the Verified Complaint.

21. Respondents deny the allegations contained in Paragraph 21 of the Verified Complaint.

22. Respondents admit that on April 14, 2018, counsel for Maurice Ward & Co., BV issued correspondence to Falcone concerning seriously overdue accounts receivable due and

owing from Falcone to Maurice Ward & Co., BV. Answering further, the referenced document speaks for itself. Except as specifically admitted herein, the Respondents deny the allegations contained in Paragraph 22 of the Verified Complaint.

23. Respondents deny the allegations contained in Paragraph 23 of the Verified Complaint.

24. Respondents deny the allegations contained in Paragraph 24 of the Verified Complaint.

25. Respondents deny the allegations contained in Paragraph 25 of the Verified Complaint.

26. Respondents deny the allegations contained in Paragraph 26 of the Verified Complaint.

Response to the Allegations Concerning the Shipping Act

27. Respondents deny the allegations contained in Paragraph 27 of the Verified Complaint.

28. Respondents deny the allegations contained in Paragraph 28 of the Verified Complaint.

29. Respondents deny the allegations contained in Paragraph 29 of the Verified Complaint.

30. Respondents deny the allegations contained in Paragraph 30 of the Verified Complaint.

31. Respondents deny the allegations contained in Paragraph 31 of the Verified Complaint.

Response to the Allegations Concerning Injury to Falcone

32. Respondents deny the allegations contained in Paragraph 32 of the Verified Complaint.

33. Respondents deny the allegations contained in Paragraph 33 of the Verified Complaint.

34. Respondents deny the allegations contained in Paragraph 34 of the Verified Complaint.

Response to the Allegations in the “Prayer for Relief”

35. Respondents deny the allegations contained in Paragraph 35, and all subparts therein.

36. Respondents deny the allegations contained in Paragraph 36, and all subparts therein.

Affirmative Defenses

1. Respondents deny any allegations or averments contained in the preamble, prayer, unnumbered paragraphs, or any other part of the Verified Complaint that are not specifically admitted to or otherwise controverted.

2. The Verified Complaint fails to state a cause of action for which relief can be granted.

3. The Verified Complaint should be dismissed pursuant to Fed. R. Civ. P. 12(b)(1) because the Federal Maritime Commission lacks subject-matter jurisdiction.

4. The Verified Complaint should be dismissed pursuant to Fed. R. Civ. P. 12(b)(2) because the Federal Maritime Commission lacks personal jurisdiction over the Respondents.

5. The Verified Complaint should be dismissed pursuant to Fed. R. Civ. P. 12(b)(3) because of improper venue.

6. The Verified Complaint should be dismissed pursuant to Fed. R. Civ. P. 12(b)(4) and 12(b)(5) because of insufficient process and insufficient service of process.

7. The claims of Complainant are subject to the affirmative defenses of waiver, recoupment and set-off.

8. Respondents plead the affirmative defenses of judicial estoppel, collateral estoppel, res judicata and issue preclusion.

9. Respondents aver that if Complainant sustained any loss or damage, said loss or damage was caused by others over whom Respondents have no control and for whose acts Respondents are not responsible.

10. Complainants have failed to mitigate their damages (if any).

11. Respondents plead the equitable defenses of unclean hands and/or unconscionability in the acts, omissions and statements of Complainant with respect to the underlying transactions and/or business dealings.

12. Respondents plead the affirmative defense of failure of condition(s) precedent.

13. Under the contractual terms governing the relationship of the relevant parties (i.e., Falcone and Maurice Ward & Co., BV), the Commercial Courts of the Netherland have exclusive jurisdiction over any dispute.

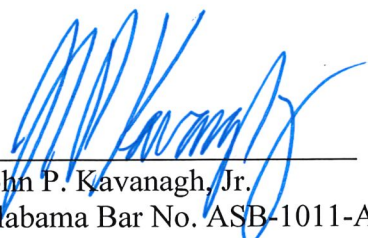
14. The alleged Shipping Act violation(s) does not amount to a “failure to establish, observe and enforce just and reasonable regulations and practices.”

15. The alleged Shipping Act violation(s) are not the proximate cause of Complainant’s alleged loss, and Complainant suffered no damages as a result of the alleged acts and/or omission of Respondents.

16. Respondents reserve the right to add different, further and other affirmative defenses as further discovery and investigation may warrant.

WHEREFORE, the foregoing premises considered, Respondents pray (i) that their answer be deemed sufficient, (ii) that the Verified Complaint be dismissed, with prejudice, (iii) that they be awarded costs and attorney’s fees, and (iv) for all other, further and different relief which justice may so require.

Respectfully submitted this the 17th day of August, 2018.



John P. Kavanagh, Jr.
Alabama Bar No. ASB-1011-A56J

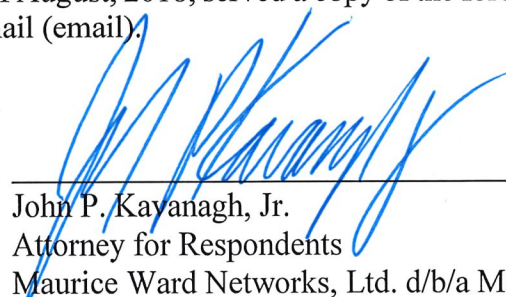
Attorney for Respondents
Maurice Ward Networks, Ltd. d/b/a Maurice
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CERTIFICATE OF SERVICE

I hereby certify that I have this the 17th day of August, 2018, served a copy of the foregoing document upon all parties of record by electronic mail (email).



John P. Kavanagh, Jr.
Attorney for Respondents
Maurice Ward Networks, Ltd. d/b/a Maurice
Ward Group, Maurice Ward & Co., BV and
Maurice Ward & Co., S.R.O